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ELECTRONICALLY FILED
Superior Court of California,
County of Alameda
02/04/2026 at 12:59:12 PM
By: Andrel Gospel,
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI Plaintiff(s), vs. OFFICER SANTIAGO MEZA-GONZALEZ #023295, individually; OFFICER JOSE MELANO #023054, individually; STATE OF CALIFORNIA; and DOES 1-10, inclusive, Defendant(s).	Case No.: 26CV168913 **COMPLAINT FOR DAMAGES** **1. False Imprisonment** **2. Battery** **3. Violation of Civil Code §52.1 (Tom Bane Civil Rights Act)** **DEMAND FOR JURY TRIAL**

I. INTRODUCTION

This is a state tort action arising from the unlawful detention, false arrest, handcuffing, forced blood draw, and incarceration of Plaintiff Brendan Ngehsi Newanforbi by California Highway Patrol officers on November 1, 2024, in Alameda County, California.

The encounter began as a welfare check, escalated after Defendants' only articulated suspicion was conclusively dispelled, and culminated in Plaintiff's arrest immediately after he lawfully refused an optional preliminary alcohol screening test.

Defendants lacked lawful justification to restrain Plaintiff. Nonetheless, they deprived him of

liberty, used coercive force, and authored an arrest report contradicted by contemporaneous audio-video evidence. No criminal charges were ever filed. The California Highway Patrol subsequently issued a Penal Code §§849/851.6 detention certificate, recharacterizing the incident as "a detention only" and acknowledging "insufficient grounds for making a criminal complaint." As a direct and proximate result of Defendants' constitutional violations, Plaintiff was handcuffed, transported to the Dublin CHP Office, subjected to an involuntary blood draw pursuant to a warrant obtained on the basis of Defendants' false statements, and incarcerated at Santa Rita Jail where a parole hold extended his detention.

II. JURISDICTION AND VENUE

This Court has jurisdiction over this action pursuant to California Constitution, Article VI, Section 10, and Code of Civil Procedure §410.10. Venue is proper in this Court pursuant to Code of Civil Procedure §393, as the acts and omissions alleged herein occurred in Alameda County, California. Defendants are public employees and entities subject to the jurisdiction of this Court, and each acted within the course and scope of their employment at all relevant times. This Court therefore has authority to adjudicate all claims asserted herein and to grant all legal and equitable relief requested.

III. PARTIES

Plaintiff Brendan Ngehsi Newanforbi is an adult resident of Stockton, California. At all times relevant to this action, Plaintiff was employed as a Class A commercial truck driver and held a valid California driver's license. As a direct and proximate result of Defendants' conduct, Plaintiff suffered loss of liberty, emotional distress, and economic harm, including interference with his employment and professional standing. Plaintiff seeks recovery of damages resulting from Defendants' wrongful acts.

Defendant State of California is sued pursuant to Government Code §815.2 for vicarious liability for the tortious acts of its employees committed within the course and scope of their employment.

Defendant Santiago Meza-Gonzalez is a California Highway Patrol Officer, Badge #023295, employed by Defendant State of California. Defendant Meza-Gonzalez is sued in his individual capacity for actions taken under color of state law.

Defendant Jose Melano is a California Highway Patrol Officer, Badge #023054, employed by Defendant State of California. Defendant Melano is sued in his individual capacity for actions taken under color of state law.

Defendants DOES 1 through 10 are CHP officers, supervisors, administrators, and other persons whose identities are presently unknown to Plaintiff despite reasonable investigation and who: (a) participated directly in Plaintiff's detention, arrest, and incarceration; (b) approved, ratified, or failed to prevent the false arrest and fabrication of evidence; (c) trained, supervised, or employed the individual Defendants; or (d) maintained policies, practices, or customs that caused or contributed to the violations alleged herein. Plaintiff will seek leave to amend this Complaint to state the true names and capacities of such Defendants when ascertained.

IV. COMPLIANCE WITH GOVERNMENT CLAIMS ACT

Plaintiff has complied with all applicable provisions of the California Government Claims Act (Government Code §§810 et seq.).

On or about April 2025, Plaintiff timely presented a written claim for damages to the California Department of General Services, Government Claims Program, arising from the November 1, 2024 incident. The claim was presented by mailing within six months of accrual

as required by Government Code §911.2. The claim contained all information required under Government Code §910. More than 45 days have elapsed since presentation of the claim without written notice of action or rejection from the State. Accordingly, the claim has been deemed rejected by operation of law pursuant to Government Code §912.4.

In the alternative, to the extent any technical defect in claim presentation exists, Plaintiff substantially complied with the Government Claims Act requirements. Defendants had actual notice of the claim, as evidenced by the California Highway Patrol's issuance of a Penal Code §851.6 detention certificate dated May 12, 2025, approximately one month after claim presentation. This certificate demonstrates that Defendants: (a) received and processed the claim; (b) conducted an internal review of the incident; and (c) took corrective action by acknowledging insufficient grounds for criminal prosecution. Defendants therefore suffered no prejudice, and the purposes of the claims requirement have been satisfied. See DiCampli-Mintz v. County of Santa Clara (2012) 55 Cal.4th 983, 990-91 (substantial compliance doctrine applies where claim serves its essential purpose of providing notice and opportunity to investigate). This Complaint is filed within two years of the deemed rejection date, in full compliance with Government Code §945.6.

V. FACTUAL ALLEGATIONS

A. Initial Encounter and Warrantless Entry

On November 1, 2024, at approximately 12:54 a.m., Plaintiff was lawfully parked on the right shoulder of Interstate 580 East, just west of Isabel Avenue in Livermore, Alameda County, California. Plaintiff, a commercial truck driver, had pulled over because he felt fatigued and was and was resting in his rental Tesla Model Y. Defendants Meza-Gonzalez and Melano approached the vehicle under the pretext of conducting a welfare check. Without Plaintiff's consent, without a warrant, and without exigent circumstances, Defendant Melano opened the locked passenger door

of Plaintiff's vehicle, constituting an unlawful warrantless entry and search. The CHP dashcam video recording ("the Transcript") documents that Defendant Melano had to unlock the door to gain entry, demonstrating Plaintiff had not consented to any search or entry of his vehicle.

B. Dispelled Suspicion

Upon entering the vehicle, Defendant Melano observed a cup in the center console and stated, "I think it's booze." This represented Defendants' sole articulated suspicion of criminal activity. Defendant Melano then picked up the cup, smelled its contents, and conclusively determined: "This is piss. It smells like piss." (Transcript, 00:58:51-00:59:05). When Defendant Melano offered the cup to Defendant Meza-Gonzalez for confirmation, Defendant Meza-Gonzalez responded: "No I'm not gonna smell that." (Transcript, 00:59:05). This exchange, captured on the dashcam audio-video recording, conclusively dispelled any reasonable suspicion that Plaintiff possessed an open container of alcohol or was engaged in criminal activity. Plaintiff explained that he urinated in the cup because he did not want to exit the vehicle on the shoulder of a busy freeway at night. This explanation was reasonable, credible, and uncontradicted by any evidence.

C. Lack of Objective Evidence of Impairment

Throughout the encounter, Plaintiff was alert, coherent, and cooperative. The dashcam video shows no objective signs of alcohol or drug impairment. Plaintiff correctly identified his location, explained his circumstances clearly, and answered all questions without confusion, slurred speech, or other indicia of intoxication. Plaintiff was wearing a distinctive orange "21+" wristband on his right wrist, consistent with having attended an adult venue earlier that evening. At no point during the encounter did either Defendant contemporaneously verbalize detecting any odor of alcohol emanating from Plaintiff's breath or person. The dashcam audio recording contains no such observation.

D. Field Sobriety Tests Conducted Without Probable Cause

Despite the absence of probable cause, Defendants ordered Plaintiff to exit his vehicle and perform field sobriety tests (FSTs). Defendant Meza-Gonzalez explicitly stated there is "no pass or fail" for the FSTs, acknowledging their inherently subjective nature. (Transcript, 01:08:20-01:08:40). Defendant Melano declined to administer certain FSTs, admitting the ground was “uneven" and unsafe for testing. Specifically, Defendant Melano stated he "wouldn't do that one" regarding certain balance tests due to environmental conditions. (Transcript, 01:10:14-01:10:30). The FSTs that were administered showed no objective signs of impairment. Plaintiff maintained his balance, followed instructions, and completed the tests without difficulty given the environmental constraints.

E. Lawful Refusal of Optional PAS Test and Immediate Retaliatory Arrest

At approximately 01:10:30, Defendant Meza-Gonzalez requested that Plaintiff submit to a Preliminary Alcohol Screening ("PAS") test. Defendant Meza-Gonzalez explicitly advised Plaintiff: "You're not required to do this." (Transcript, 01:10:54). Defendant Meza-Gonzalez further stated: "if you refuse [the PAS test], it'll be up to my discretion whether I put you under arrest for DUI or not." (Transcript, 01:11:03) This statement constituted an improper threat to coerce Plaintiff into waiving his statutory right to refuse the optional test.

Under California Vehicle Code §23612, a preliminary alcohol screening test is optional for drivers over 21 years of age who are not on DUI probation. Plaintiff lawfully exercised his right to decline the optional PAS test, stating: "I don't consent to that." (Transcript, 01:11:15). Immediately upon Plaintiff's lawful refusal of the optional PAS test—and in retaliation for that refusal—Defendant Meza-Gonzalez ordered Plaintiff to turn around and place his hands behind his back. (Transcript, 01:11:16-01:11:31). Plaintiff was placed under arrest at approximately 01:12 a.m., handcuffed, and detained without probable cause to believe he had committed any crime.

F. Post-Arrest Search and Discovery of Evidence

After Plaintiff was handcuffed and secured in the patrol vehicle, Defendant Melano conducted a search of Plaintiff's vehicle. During this search, Defendant Melano located an empty aluminum can. The empty can was not in plain view prior to the arrest and was discovered only as a result of the post-arrest search. (Transcript, 01:23:20). Defendant Melano admitted on the recording that he conducted the search "first because he's on parole," referring to Plaintiff's parole status, not because of any legitimate search incident to a lawful arrest. (Transcript, 01:23:20)

G. Fabricated Evidence in Official Arrest Report

Following the arrest, Defendant Meza-Gonzalez prepared an official California Highway Patrol Arrest-Investigation Report (CHP Case No. RJ68845) that deliberately fabricated material facts to create probable cause where none existed.

In the arrest report, Defendant Meza-Gonzalez falsely claimed under penalty of perjury:

a. "I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle."

b. "I smelled the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person."

These statements are directly contradicted by the contemporaneous dashcam audio recording, which contains no verbal observation of any alcohol odor. The only odor mentioned by Defendants throughout the entire encounter was the smell of urine from the cup.

In the arrest report, Defendant Meza-Gonzalez further falsely claimed that Plaintiff exhibited "objective signs and symptoms of intoxication" and "poor performance on the FST's." These characterizations are contradicted by: (a) the dashcam video showing Plaintiff's coherent demeanor and steady gait; (b) Defendant Meza-Gonzalez's own admission that there is "no pass or fail" for FSTs; and (c) Defendant Melano's admission that certain tests were not administered due to unsafe environmental conditions, not Plaintiff's refusal.

The arrest report omits entirely that: (a) the suspected alcohol in the cup was confirmed to be urine; (b) Plaintiff reasonably explained his use of the cup; (c) Defendant Melano declined to administer certain FSTs due to uneven ground; (d) the arrest occurred immediately after Plaintiff's lawful PAS refusal; and (e) the empty can was discovered only after the arrest, not before.

The fabricated evidence was material because it was used to: (a) obtain a search warrant for Plaintiff's blood; (b) institute DMV administrative proceedings resulting in suspension of Plaintiff's driving privileges; and (c) support a parole hold that extended Plaintiff's detention at Santa Rita Jail.

H. Post-Arrest Proceedings and Consequences

Based on the false statements in the arrest report, a magistrate issued a search warrant authorizing the involuntary extraction of Plaintiff's blood. Plaintiff was transported to the Dublin CHP Office where his blood was forcibly drawn pursuant to the warrant. Plaintiff was then transported to and booked into Santa Rita Jail in Dublin, California. Due to Plaintiff's parole status, a parole hold was instituted based on the false arrest report, extending Plaintiff's detention beyond the initial arrest. No criminal charges were ever filed against Plaintiff arising from the November 1, 2024 incident. On or about November 5, 2024, the California Highway Patrol issued a Penal Code §851.6 detention certificate, officially recharacterizing the incident as "a detention only, not an arrest" and certifying "insufficient grounds for making a criminal complaint." The issuance of this certificate constitutes an admission by Defendants that the arrest lacked probable cause and was unlawful from its inception. Notwithstanding the detention certificate, the California Department of Motor Vehicles instituted administrative license suspension proceedings against Plaintiff based on the false arrest report. Following a hearing on January 24, 2025, the DMV suspended Plaintiff's driving privileges for one year, effective February 20, 2025 through February 19, 2026.

VI. FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

(Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every allegation contained in paragraphs 1 through 60 above as though fully set forth herein.

Defendants Meza-Gonzalez and Melano intentionally and unlawfully confined, detained, and restrained Plaintiff against his will without his consent and without lawful privilege or authority.

The confinement was accomplished through physical restraint (handcuffing), threats of arrest as coercion to submit to unlawful searches, and actual arrest and transportation to CHP offices and Santa Rita Jail.

Plaintiff was aware of and did not consent to the confinement.

Under California law, peace officers lack lawful privilege to arrest without a warrant unless they have probable cause to believe the person arrested has committed a public offense in their presence. See California Penal Code §836; People v. Leyba (1981) 29 Cal.3d 591, 596-97.

Defendants lacked probable cause to arrest Plaintiff because:

a. Their sole articulated suspicion—that a cup contained alcohol—was conclusively dispelled when Defendant Melano confirmed it contained urine;

b. Plaintiff exhibited no objective signs of alcohol or drug impairment;

c. Defendants made no contemporaneous observation of alcohol odor despite later falsely claiming otherwise;

d. Field sobriety tests showed no impairment, and Defendants admitted there is "no pass or fail" standard;

e. The arrest occurred immediately after—and in retaliation for—Plaintiff's lawful exercise of his statutory right to refuse an optional PAS test.

Defendants' lack of probable cause is further evidenced by the California Highway Patrol's

subsequent issuance of a detention certificate under Penal Code §851.6, recharacterizing the incident as "a detention only" and acknowledging "insufficient grounds for making a criminal complaint."

Under California law, once Plaintiff establishes the elements of false imprisonment, the burden shifts to Defendants to prove lawful justification for the detention as an affirmative defense. See Asgari v. City of Los Angeles (1997) 15 Cal.4th 744, 751.

As a direct and proximate result of Defendants' false imprisonment, Plaintiff suffered and continues to suffer:

a. Loss of liberty and freedom of movement;

b. Physical pain and discomfort from handcuffing and involuntary blood draw;

c. Severe emotional distress, humiliation, and mental anguish;

d. Extended detention at Santa Rita Jail due to parole hold;

e. Economic losses including lost wages and inability to work as a commercial truck driver;

f. Reputational harm;

g. Other damages according to proof at trial.

Defendant State of California is vicariously liable for the tortious conduct of its employees, Defendants Meza-Gonzalez and Melano, pursuant to Government Code §815.2(a), as their actions were committed within the course and scope of their employment.

VII. SECOND CAUSE OF ACTION: BATTERY

(Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every allegation contained in paragraphs above as though fully set forth herein.

Defendants Meza-Gonzalez and Melano intentionally touched Plaintiff in a harmful or offensive manner without his consent and without lawful privilege when they:

a. Physically handcuffed Plaintiff and restrained his movement;

b. Seized Plaintiff's person and transported him against his will;

c. Caused Plaintiff to be subjected to an involuntary blood draw pursuant to a warrant obtained through false statements.

Plaintiff did not consent to these touchings.

The physical contact was harmful and offensive, causing Plaintiff physical pain, discomfort, and emotional distress.

Defendants lacked lawful privilege to make such physical contact because, as alleged above, they lacked probable cause to arrest Plaintiff.

The involuntary blood draw was particularly invasive, constituting a forcible penetration of Plaintiff's body to extract bodily fluids—a battery of the most serious nature.

As a direct and proximate result of Defendants' battery, Plaintiff suffered the damages alleged in paragraph 69 above, incorporated herein.

Defendant State of California is vicariously liable for the tortious conduct of its employees, Defendants Meza-Gonzalez and Melano, pursuant to Government Code §815.2(a), as their actions were committed within the course and scope of their employment.

VIII. THIRD CAUSE OF ACTION

VIOLATION OF CIVIL CODE §52.1 (TOM BANE CIVIL RIGHTS ACT)

(Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every allegation contained in paragraphs above as though fully set forth herein.

At all relevant times, Plaintiff possessed clearly established rights secured by the Fourth and Fourteenth Amendments to the United States Constitution and Article I, Section 13 of the California Constitution, including:

a. The right to be free from unreasonable searches and seizures;

b. The right to be free from arrest without probable cause;

c. The right to be free from fabricated evidence used to deprive liberty;

d. The right to exercise statutory protections without retaliation, including the right to refuse an optional PAS test.

Defendants Meza-Gonzalez and Melano interfered with, or attempted to interfere with, Plaintiff's exercise and enjoyment of these constitutional rights by threats, intimidation, and coercion, specifically:

a. Threatening Plaintiff with arrest if he exercised his right to refuse the optional PAS test;

b. Immediately arresting Plaintiff in retaliation for his lawful refusal of the PAS test;

c. Using physical force to handcuff and restrain Plaintiff without lawful authority;

d. Conducting a warrantless entry and search of Plaintiff's vehicle despite the absence of exigent circumstances or consent;

e. Deliberately fabricating evidence in an official report to justify the unlawful arrest and obtain a warrant for involuntary blood extraction.

Defendants acted with the specific intent to interfere with Plaintiff's constitutional rights. This intent is demonstrated by:

a. The explicit threat that arrest was conditioned on Plaintiff's exercise of his right to refuse the PAS test;

b. The immediate arrest following Plaintiff's lawful PAS refusal, despite the absence of probable cause;

c. The deliberate fabrication of alcohol odor observations that directly contradict the contemporaneous audio-video recording.

The "threats, intimidation, or coercion" required by Civil Code §52.1 are satisfied by the wrongful

arrest itself when used as a tool to punish the exercise of constitutional rights and the fabrication of evidence to justify that unlawful arrest. See Cornell v. City & County of San Francisco (2017) 17 Cal.App.5th 766, 801 (arrest without probable cause accompanied by specific intent to violate rights satisfies coercion element); Shoyoye v. County of Los Angeles (2012) 203 Cal.App.4th 947, 959.

The fabrication of evidence to obtain a search warrant for involuntary blood extraction constitutes an independent act of coercion, as it involved deliberate deceit to subject Plaintiff to an invasive bodily intrusion he would not otherwise have been subjected to.

As a direct and proximate result of Defendants' violations of Civil Code §52.1, Plaintiff suffered the damages alleged in paragraph 69 above, incorporated herein.

Pursuant to Civil Code §52(b)(1), Plaintiff is entitled to recover actual damages or $4,000, whichever is greater, and reasonable attorney's fees.

Defendant State of California is vicariously liable for the tortious conduct of its employees, Defendants Meza-Gonzalez and Melano, pursuant to Government Code §815.2(a), as their actions were committed within the course and scope of their employment.

IX. DAMAGES

As a direct and proximate result of Defendants' unlawful conduct, Plaintiff has suffered and continues to suffer general damages including but not limited to:

a. Loss of liberty and freedom of movement during unlawful detention and incarceration;

b. Physical pain and suffering from handcuffing, restraint, and forced blood extraction;

c. Severe emotional distress, including anxiety, humiliation, and mental anguish;

d. Reputational harm and damage to personal and professional standing;

e. Loss of enjoyment of life.

Plaintiff has suffered special damages including but not limited to:

a. Lost wages and earnings from employment as a commercial truck driver, regularly scheduled for 11.5 hours per day, 5 days per week, during periods of detention, incarceration, and license suspension;

b. Loss of earning capacity due to one-year suspension of commercial driving privileges (February 20, 2025 through February 19, 2026);

c. Vehicle towing and impound fees;

d. Costs associated with DMV administrative proceedings;

e. Other economic losses to be proven at trial.

The exact amount of damages will be proven at trial.

X. PUNITIVE DAMAGES

Defendants Meza-Gonzalez and Melano acted with malice, oppression, and fraud within the meaning of California Civil Code §3294.

Defendants acted with conscious disregard for Plaintiff's constitutional rights by:

a. Arresting Plaintiff without probable cause, knowing their sole suspicion had been conclusively dispelled;

b. Using the threat of arrest to coerce Plaintiff into waiving his statutory right to refuse an optional chemical test;

c. Deliberately fabricating material evidence in an official report under penalty of perjury, including false claims of alcohol odor that directly contradict contemporaneous audio-video evidence;

d. Using the fabricated evidence to obtain a search warrant for involuntary blood extraction and to support extended detention through a parole hold.

The fabrication of evidence demonstrates despicable conduct carried on with willful and conscious disregard of Plaintiff's rights, warranting the imposition of punitive damages to punish Defendants and deter similar future conduct.

Plaintiff is entitled to punitive damages against Defendants Meza-Gonzalez and Melano in their individual capacities in an amount sufficient to punish their conduct and deter others from similar misconduct, according to proof at trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI prays for judgment against Defendants, and each of them, as follows:

1. For general damages in an amount according to proof at trial;

2. For special damages in an amount according to proof at trial;

3. For statutory damages pursuant to Civil Code §52.1(b)(1) in the amount of $4,000 or actual damages, whichever is greater;

4. For punitive damages against Defendants Meza-Gonzalez and Melano in their individual capacities in an amount sufficient to punish and deter such conduct;

5. For reasonable attorney's fees and costs pursuant to Civil Code §52.1(b)(1);

6. For costs of suit incurred herein;

7. For such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

Respectfully submitted,

DATED: February 4, 2026

/s/ Brendan Ngehsi Newanforbi
Brendan Ngehsi Newanforbi
In Pro Per